

File No.: EXP202312079

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 4, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedure of file number EXP202105252, followed against A.A.A. (hereinafter, the respondent). In this resolution, in addition to imposing a fine, the following measures were required:

“SECOND: ORDER A.A.A., with NIF ***NIF.1, to adopt the following measures within ten working days, pursuant to Article 58.2.d) of the GDPR:

- Provide evidence of having removed the device in question by submitting documentary proof with date and time that verifies this fact, or, failing that, provide evidence of the regularization of the camera in accordance with current regulations.”

SECOND: The resolution of the sanctioning procedure was notified to the respondent, in accordance with the provisions established in Articles 42 and 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by means of an announcement published in the Official State Gazette dated May 31, 2022, after two unsuccessful attempts at postal notification to the address provided by the Local Police of Granadilla de Abona as the respondent's address, as evidenced in the file.

In this resolution, the respondent was granted a period of ten working days to adopt the imposed measures.

THIRD: On December 15, 2022, and with registration number REGAGE22e00057656831, a written submission from the complainant was registered, indicating that the respondent had not complied with the requirements of this Agency.

FOURTH: The respondent was again required on four occasions to provide evidence to this Agency within ten working days that they had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution. Copies of the resolution of the sanctioning procedure of file number EXP202105252 were attached to these requests.

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The first request, sent to the address provided by the Local Police of Granadilla de Abona as the respondent's address, was returned to sender by Correos on February 1, 2023, due to being unclaimed (not picked up at the office after a notice was left in the mailbox), according to the acknowledgment of receipt in the file.

The second and third requests, sent to the address where the respondent is registered, were returned to sender by Correos due to incorrect address on March 28 and July 5, 2023, according to the acknowledgments of receipt in the file, despite the address having been previously verified both in the registry and with the State Agency for Tax Administration.

The fourth request, sent to the address provided by the Local Police of Granadilla de Abona as the respondent's address, was returned to sender by Correos on August 9, 2023, marked as unknown, according to the acknowledgment of receipt in the file.

On August 11, 2023, with registration number REGAGE23s00054732572, as a supplement to the previous notifications, a new communication of the compliance request of the aforementioned Resolution was sent to the respondent at the address where they are registered by ordinary postal mail, to be deposited in their mailbox.

On September 26, 2023, with registration number REGAGE23s00064403074, the respondent was required for the last time to provide evidence to this Agency within ten working days that they had

adopted the appropriate corrective measures, in accordance with what was agreed in the Resolution of the sanctioning procedure of file number EXP202105252, attaching a copy of the same. This request, despite being sent to the address verified both in the registry and with the State Agency for Tax Administration, was returned to sender by Correos on October 4, 2023, due to incorrect address, according to the acknowledgment of receipt in the file.

FIFTH: The respondent has not submitted any response to this Agency that verifies compliance with the imposed measures.

SIXTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be filed due to the expiration of the established deadlines for this. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

SEVENTH: On November 15, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

EIGHTH: The agreement to initiate the present sanctioning procedure was notified to the respondent, in accordance with the provisions established in the LPACAP, by means of

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an announcement published in the Official State Bulletin dated December 1, 2023, after the attempt at postal notification proved unsuccessful, as evidenced in the file.

NINTH: The aforementioned initiation agreement has been notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the party being claimed.

Article 64.2.f) of the LPACAP - a provision of which the claimed party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed. Therefore, considering that the claimed party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered, in this case, a proposal for resolution.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requirements for compliance indicated in the first, second, and fourth antecedents were notified in accordance with the provisions of the LPACAP. This resolution became firm and enforceable due to the passage of the deadlines established for the filing of the appeals indicated therein.

SECOND: The claimed party has not sent any response to this Agency that proves compliance with the imposed measures.

THIRD: The initiation agreement of this sanctioning procedure was notified to the claimed party, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Bulletin (BOE) dated December 1, 2023, after the attempt at postal notification proved unsuccessful due to an incorrect address.

This Agency has consulted the census data from the INE and the tax address in the Tax Agency, coinciding with the postal address to which the attempts to notify the initiation agreement were made, prior to the publication in the BOE.

FOURTH: The claimed party has not presented allegations to the initiation agreement of this

sanctioning procedure.

LEGAL GROUNDS

I

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Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

In accordance with the evidence available, it is considered that the claimed party has failed to comply with the resolution of the Spanish Agency for Data Protection regarding the measures imposed on it. Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the claimed party, for violation of Article 58.2.d) of the GDPR, which states the following: "2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;"

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total global annual turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which classifies the following conduct as very serious:

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"m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned

Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating factors apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR as classified in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 400.00 euros.

V

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of 400.00 euros (FOUR HUNDRED euros).

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and enforceable, to provide evidence of having proceeded with the withdrawal of the device in question by submitting documentary proof with date and time that verifies this fact, or, failing that, to provide evidence of the regularization of the camera in accordance with current regulations, and as established in the resolution of the sanctioning procedure of file number EXP202105252.

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THIRD: NOTIFY this resolution to A.A.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receiving the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal

before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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